

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0003148-2021

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Gabriel Calhoun

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CASE INFORMATION

Cross Court Docket Nos: 520 EDA 2024, 87 EAL 2026

Judge Assigned: Brandeis-Roman, Tracy

Date Filed: 04/16/2021

Initiation Date: 04/16/2021

OTN: U 223712-6

LOTN:

Originating Docket No: MC-51-CR-0003622-2021

Initial Issuing Authority: James M. DeLeon

Final Issuing Authority:

Arresting Agency: Philadelphia Pd

Arresting Officer: Brennan, Christopher J.

Complaint/Citation No.: 2109000091-0003622

Incident Number: 2109000091

County: Philadelphia

Township: Philadelphia City

Case Local Number Type(s)

Case Local Number(s)

Originating Docket Number

MC-51-CR-0003622-2021

District Control Number

2109000091

Originating Document Number

2109000091-0003622

STATUS INFORMATION

<u>Case Status:</u>	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u>
Closed	03/22/2026	Awaiting Appellate Court Decision	02/24/2021
	03/03/2026	Appeal Decided	
	02/09/2024	Awaiting Appellate Court Decision	
	02/02/2024	Awaiting Disposition	
	12/08/2023	Awaiting PSI	
	12/08/2023	Awaiting Sentencing	
	11/03/2023	Awaiting PSI	
	11/03/2023	Awaiting Sentencing	
	07/28/2023	Awaiting PSI	
	07/28/2023	Awaiting Sentencing	
	07/28/2023	Awaiting Sentencing	
	07/19/2023	Awaiting Trial	
	07/06/2022	Awaiting Trial Readiness Conference	
	04/29/2022	Awaiting Trial Readiness Conference	
	01/18/2022	Awaiting Trial Readiness Conference	
	10/19/2021	Awaiting Scheduling Conference	
	04/28/2021	Awaiting Pre-Trial Conference	
	04/20/2021	Awaiting Formal Arraignment	
	04/16/2021	Awaiting Filing of Information	

Complaint Date: 02/24/2021

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	04/29/2021	11:00 am	1104	Trial Commissioner Lisa McNevin	Scheduled
Pre-Trial Conference	05/18/2021	9:00 am	1005	Judge Robert P. Coleman	Scheduled
Pretrial Bring Back	06/22/2021	9:00 am	1005	Judge Robert P. Coleman	Continued
Pretrial Bring Back	08/03/2021	9:00 am	1005	Judge Robert P. Coleman	Continued
Pretrial Bring Back	10/19/2021	9:00 am	1005	Judge Robert P. Coleman	Scheduled
Scheduling Conference	01/18/2022	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Trial Readiness Conference	07/06/2022	10:00 am	801	Judge Mia Roberts Perez	Moved
Trial Readiness Conference	07/06/2022	10:00 am	905	Judge Zachary C. Shaffer	Moved
Jury Trial	07/11/2022	9:30 am	801	Judge Mia Roberts Perez	Moved
Jury Trial	07/11/2022	9:30 am	905	Judge Zachary C. Shaffer	Moved
Motions Hearing	07/13/2022	9:00 am	901	Judge Jennifer Schultz	Scheduled
Motions Hearing	07/13/2022	10:00 am	801	Judge Mia Roberts Perez	Moved
Trial Readiness Conference	07/19/2023	10:00 am	905	Judge Zachary C. Shaffer	Moved
Trial Readiness Conference	07/19/2023	10:00 am	801	Judge Monica Gibbs	Scheduled
Jury Trial	07/24/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Jury Trial	07/24/2023	9:30 am	801	Judge Monica Gibbs	Moved
Jury Trial	07/24/2023	10:00 am	905	Judge Zachary C. Shaffer	Moved
Jury Trial	07/26/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Jury Trial	07/27/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Jury Trial	07/28/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Sentencing	11/03/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Sentencing	12/08/2023	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Sentencing	02/02/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	03/07/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	06/06/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	11/15/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	02/13/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	06/30/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	10/03/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	02/06/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Continued

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<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Status	05/29/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled

DEFENDANT INFORMATION

Date Of Birth: 08/27/1996 City/State/Zip: Philadelphia, PA 19143

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Calhoun, Gabriel

BAIL INFORMATION

Calhoun, Gabriel

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	02/24/2021	Monetary	Municipal Court	10.00%	\$100,000.00
<u>Surety Type</u>	<u>Surety Name</u>	<u>Posting Status</u>	<u>Posting Date</u>	<u>Security Type</u>	<u>Security Amt</u>
Self	Calhoun, Gabriel	Posted	02/25/2021	Cash	\$10,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1		18 § 3121	Rape Forcible Compulsion	01/01/2021	U 223712-6
2	2		18 § 3124.1	Sexual Assault	01/01/2021	U 223712-6
3	4		18 § 3121	Rape Unconscious Victim	01/01/2021	U 223712-6
4	5		18 § 3126	Indec Asslt-W/O Cons Of Other	01/01/2021	U 223712-6
5	6		18 § 3126	Indecent Assault Forcible Compulsion	01/01/2021	U 223712-6
6	7		18 § 3126	Indecent Assault Person Unconscious	01/01/2021	U 223712-6

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	04/15/2021	Not Final
1 / Rape Forcible Compulsion	Held for Court	18 § 3121
2 / Sexual Assault	Held for Court	18 § 3124.1
3 / Rape Unconscious Victim	Held for Court	18 § 3121
4 / Indec Asslt-W/O Cons Of Other	Held for Court	18 § 3126
5 / Indecent Assault Forcible Compulsion	Held for Court	18 § 3126

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Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
6 / Indecent Assault Person Unconscious	Held for Court	18 § 3126
Proceed to Court Defendant Was Not Present		
Information Filed	04/20/2021	Not Final
1 / Rape Forcible Compulsion	Proceed to Court	18 § 3121
2 / Sexual Assault	Proceed to Court	18 § 3124.1
3 / Rape Unconscious Victim	Proceed to Court	18 § 3121
4 / Indec Assault-W/O Cons Of Other	Proceed to Court	18 § 3126
5 / Indecent Assault Forcible Compulsion	Proceed to Court	18 § 3126
6 / Indecent Assault Person Unconscious	Proceed to Court	18 § 3126
Guilty		
Jury Trial	07/28/2023	Not Final
1 / Rape Forcible Compulsion	Nolle Prossed	18 § 3121
2 / Sexual Assault	Guilty	18 § 3124.1
3 / Rape Unconscious Victim	Not Guilty	18 § 3121
4 / Indec Assault-W/O Cons Of Other	Not Guilty	18 § 3126
5 / Indecent Assault Forcible Compulsion	Nolle Prossed	18 § 3126
6 / Indecent Assault Person Unconscious	Nolle Prossed	18 § 3126
Proceed to Court (Disposition Vacated)		
Sentencing	02/02/2024	Not Final
1 / Rape Forcible Compulsion	Proceed to Court (Conviction Reversed)	18 § 3121
2 / Sexual Assault	Proceed to Court (Conviction Reversed)	18 § 3124.1
3 / Rape Unconscious Victim	Proceed to Court (Conviction Reversed)	18 § 3121
4 / Indec Assault-W/O Cons Of Other	Proceed to Court (Conviction Reversed)	18 § 3126
5 / Indecent Assault Forcible Compulsion	Proceed to Court (Conviction Reversed)	18 § 3126
6 / Indecent Assault Person Unconscious	Proceed to Court (Conviction Reversed)	18 § 3126

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COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
Prosecutor

Supreme Court No:

Phone Number(s):
215-686-8000 (Phone)

Address:

3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Troy H. Wilson
Private

Supreme Court No: 047024

Rep. Status: Active

Phone Number(s):
215-985-4566 (Phone)

Address:

215 S Broad St Fl 2
Philadelphia, PA 19107-5318

Representing: Calhoun, Gabriel

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	04/16/2021		Court of Common Pleas - Philadelphia County
Held for Court			
1	04/19/2021		Page, Shawn Kendricks Sr.
Waiver of Appearance at Arraignment			
1	04/20/2021		Krasner, Larry
Information Filed			
3	04/28/2021		Court of Common Pleas - Philadelphia County
Hearing Notice			
2	05/18/2021		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	06/22/2021		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/22/2021		Coleman, Robert P.
Defense Request For Continuance For Further Investigation			
3	08/03/2021		Coleman, Robert P.
Defense Request For Continuance For Further Investigation Calhoun, Gabriel			

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<u>Service To</u>	<u>Service By</u>		
<u>Issue Date</u>	<u>Service Type</u>	<u>Status Date</u>	<u>Service Status</u>
08/03/2021	First Class		
1	01/03/2022		Wilson, Troy H.
Motion for Discovery			
2	01/18/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	01/18/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/18/2022		Court of Common Pleas - Philadelphia County Shaffer, Zachary C.
Short Certificate			
6	01/18/2022		Shaffer, Zachary C.
Scheduling Order - Jury			
7	01/18/2022		Shaffer, Zachary C.
Counsel Attached for Trial			
1	04/04/2022		Snyder, Marni Jo
Entry of Appearance			
2	04/29/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	04/29/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	07/06/2022		Perez, Mia Roberts
Defense Request For Continuance Attorney Unavailable			

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3	07/13/2022		Schultz, Jennifer
Order Granting Motion in Limine			
4	07/13/2022		Schultz, Jennifer
Order Granting Motion in Limine			
5	07/13/2022		Perez, Mia Roberts
Status Listing			
2	11/03/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	11/03/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/19/2023		Gibbs, Monica
Trial Date to Remain			
1	07/20/2023		Wilson, Troy H.
Motion in Limine			
2	07/20/2023		Wilson, Troy H.
Motion in Limine			
1	07/23/2023		Snyder, Marni Jo
Motion in Limine			
1	07/24/2023		Gibbs, Monica
Order Granting Motion for Continuance			
5	07/24/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	07/24/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			

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6	07/24/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	07/24/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
11	07/24/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
12	07/24/2023		Brandeis-Roman, Tracy
Jury Selection Completed			
1	07/26/2023		Brandeis-Roman, Tracy
Jury Selection			
2	07/26/2023		Brandeis-Roman, Tracy
Jury Sworn			
3	07/26/2023		Brandeis-Roman, Tracy
Opening Statements			
4	07/26/2023		Brandeis-Roman, Tracy
Order Entering an Exhibit			
5	07/26/2023		Brandeis-Roman, Tracy
Testimony Begins			
9	07/26/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	07/26/2023		Brandeis-Roman, Tracy
Court Request For Continuance Trial in Progress			
4	07/27/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			

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5	07/27/2023		Brandeis-Roman, Tracy
Jury Retires for Deliberation			
1	07/28/2023		Brandeis-Roman, Tracy
Guilty			
4	07/28/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	07/28/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	07/28/2023		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			
4	11/03/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	11/03/2023		Brandeis-Roman, Tracy
Court Request For Continuance Case Held Under Advisement			
4	12/08/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	12/08/2023		Brandeis-Roman, Tracy
Court Request For Continuance Notes of Testimony Unavailable			
1	01/29/2024		Philadelphia County District Attorney's Office
Letter in Brief			
1	02/02/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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2	02/02/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	02/02/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	02/02/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	02/02/2024		Brandeis-Roman, Tracy
Order Granting Motion for Extraordinary Relief			
7	02/02/2024		Brandeis-Roman, Tracy
Order Granting Motion for New Trial			
8	02/02/2024		Brandeis-Roman, Tracy
Proceed to Court (Disposition Vacated)			
10	02/02/2024		Brandeis-Roman, Tracy
Order Granting Motion for Extraordinary Relief			
11	02/02/2024		Brandeis-Roman, Tracy
Order Granting Motion for Extraordinary Relief			
1	02/09/2024		Philadelphia County District Attorney's Office
Notice of Appeal to the Superior Court			
1	02/22/2024		Superior Court of Pennsylvania - Eastern District
Docketing Statement from Superior Court			
1	03/04/2024		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			

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3	03/07/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	03/07/2024		Brandeis-Roman, Tracy
Status Listing			
1	04/15/2024		Court of Common Pleas - Philadelphia County
Trial Court Exhibits			
1	04/16/2024		Brandeis-Roman, Tracy
Order Issued Pursant to Pa.R.A.P. 1925(b)			
3	06/06/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/06/2024		Brandeis-Roman, Tracy
Status Listing			
1	06/26/2024		Philadelphia County District Attorney's Office
Statement of Matters Complained on Appeal			
1	11/15/2024		Brandeis-Roman, Tracy
Status Listing			
3	11/15/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	11/15/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/27/2025		Brandeis-Roman, Tracy
Opinion			

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1	01/28/2025		Court of Common Pleas - Philadelphia County
Appeal Docket Entries and Served			
2	01/28/2025		Court of Common Pleas - Philadelphia County
Certificate and Transmittal of Record to Appellate Court			
3	02/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	02/13/2025		Brandeis-Roman, Tracy
Status Listing			
3	06/30/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	06/30/2025		Brandeis-Roman, Tracy
Status Listing			
3	10/03/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	10/03/2025		Brandeis-Roman, Tracy
Status Listing			
1	02/06/2026		Brandeis-Roman, Tracy
Commonwealth Request For Continuance For Status of Appeal			
5	02/06/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	03/03/2026		Superior Court of Pennsylvania - Eastern District
Superior Court Decision			

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2	03/03/2026		Superior Court of Pennsylvania - Eastern District
Superior Court Opinion			
3	03/03/2026		Superior Court of Pennsylvania - Eastern District
Order Reversed and Record Remanded for Further Proceedings			
1	03/22/2026		Supreme Court of Pennsylvania - Eastern District
Petition for Allowance of Appeal Filed - Supreme Court			

CASE FINANCIAL INFORMATION

Last Payment Date: 07/25/2023

Total of Last Payment: -\$12.50

Calhoun, Gabriel Defendant	Assessment	Payments	Adjustments	Non Monetary Payments	Balance
Costs/Fees					
Bail Bond (Philadelphia)	\$10.00	\$0.00	(\$10.00)	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Costs/Fees Totals:	\$60.00	(\$50.00)	(\$10.00)	\$0.00	\$0.00
Grand Totals:	\$60.00	(\$50.00)	(\$10.00)	\$0.00	\$0.00

** - Indicates assessment is subrogated